SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DR. PETER DASZAK, PH.D.,

Plaintiff,

-against-

ECOHEALTH ALLIANCE INC., STEVEN SHAPIRO, INDIVIDUALLY AND AS CHAIRMAN OF THE BOARD OF DIRECTORS OF ECOHEALTH ALLIANCE, INC., AND JULIET AGRANOFF, DR. FREDERICK BAUM III, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M. THYE, CARLOTA VOLLHARDT, STEVEN WILS, AND DR. LILIAN WU,

Defendants.

Index No.: 164611/2025

REPLY MEMORANDUM OF LAW IN FURTHER SUPPORT OF DEFENDANTS' MOTION TO DISMISS

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PRELIMINARY STATEMENT

Plaintiff's Opposition fails to overcome, much less question, Defendants' arguments in support of dismissal. Instead, the Opposition concedes and confirms that:

- Plaintiff did not have an employment contract with EHA;
- Plaintiff was an at-will employee;
- Plaintiff's termination was not connected in any way to his age; and
- He cannot and has not identified any intentional acts or gross negligence by any individual director to strip them of immunity from suit and liability.

Plaintiff attaches the EHA employee handbook purportedly to demonstrate the existence of an employment contract and entitlement to severance. However, Plaintiff asks the Court to ignore clear statements in the handbook that it is not a contract, creates no contractual obligations and explains the limited circumstances under which severance will be and thus is not a blanket guarantee of severance.

Plaintiff also fails to salvage his age discrimination claims. Other than baldly restating that he is older, Plaintiff provides no information to properly plead any inference of age discrimination. He has not identified any age-based animus, comment or action, and has not identified any younger comparators who allegedly received better treatment. Similarly, Plaintiff fails to identify any individual board member who engaged in discriminatory conduct.

Finally, Plaintiff's conclusory statement that individual board members "conspired" or acted "in unison" is insufficient to overcome immunity from suit for unpaid directors under the applicable not-for-profit laws. The inability to plead a discrimination claim further demonstrates that the Complaint is devoid of any intentional or gross negligence that would nullify the Individual Defendants' statutory immunity.

Accordingly, the Complaint should be dismissed in its entirety.

ARGUMENT

POINT I

PLAINTIFF FAILS TO IDENTIFY ANY EMPLOYMENT CONTRACT OR GUARANTEE OF SEVERANCE

The Opposition clarifies that Plaintiff's breach of contract relies entirely on the argument that the Employee Handbook created an enforceable contractual right to severance. See Daszak Affidavit, Exhibit 3, p. 40, Section 25.7, NYSCEF Doc. No. 52. Plaintiff expressly states that he "does not allege he is entitled to anything other than his severance" and that he "seeks the severance he was granted under the EHA employee handbook." See Pl. Opp. p.7, NYSCEF Doc. No. 51. This argument fails because the handbook expressly disclaims any contractual effect and, in any case, describes the limited the circumstances in which severance is paid.

The July 2024 handbook provides, "The EcoHealth Alliance Employee Handbook is not a contract of employment nor is it intended to create contractual obligations of any kind." See Daszak Affidavit, Exhibit 3, p. 2, NYSCEF Doc. No. 52. The handbook continues to explain that these policies "will be applied at EcoHealth Alliance's discretion" and that EHA "reserves the right to deviate, withdraw, or change from the policies, procedures, benefits, and working conditions described in this handbook at any time, for any reason and without prior notice." Id. Further, the handbook acknowledgement restates the limitations of the handbook: "I understand that the Employee Handbook is not a contract, express or implied, between EcoHealth Alliance and me and should not be viewed as such." Id at p.42. In addition, the acknowledgement confirms that employment is at-will and may be terminated, "for any reason, at any time, with or without cause." Id.

Under New York law, this language belies any claim that an employee handbook, alone, creates enforceable contractual rights. See Lobosco v. NY Tel. Co./Nynex, 96 N.Y.2d 312,

317 (N.Y. 2001). The presence of "conspicuous disclaiming language" further demonstrates that a handbook is not an employment contract. Id. ("An employee seeking to rely on a provision arguably creating a promise must also be held to reliance on the disclaimer. Here we conclude that such disclaimer prevents the creation of a contract and negates any protection from termination plaintiff may have inferred from the manual's no-reprisal provision.")

This is exactly the argument here. Plaintiff cannot transform the handbook into a severance contract while ignoring the same handbook's non-contractual disclaimer, at-will provision, discretionary reservation, and modification language.

A. Plaintiff Has Not Satisfied Any Conditions Required to Obtain Severance

Even if the handbook did not contain an express contractual disclaimer, the handbook would not create the unconditional obligation Plaintiff alleges. The relevant section provides that, "[i]n the event a EcoHealth Alliance employee is laid off for non-performance-related reasons (e.g., due to a restructuring or loss of funding), the employee will receive up to two weeks of severance pay for each year of service, provided that the employee signs a Severance Agreement and Release drafted by and satisfactory to EcoHealth Alliance." See Daszak Affidavit, Exhibit 3, p. 40, NYSCEF Doc. No. 52

The Complaint and Opposition fail to address Plaintiff's satisfaction of any of the conditions precedent to receiving severance. Plaintiff does not plead that he was laid off for non-performance related reasons or that he signed a severance agreement and release that was satisfactory to EHA. His repeated use of the phrase "without cause" is of no consequence because that is not the handbook standard, indeed Section 25.7 does not obligate EHA to pay severance to every or any employee terminated without cause, even were Daszak dismissed without cause. Accordingly, Plaintiff's claim for severance fails even if his arguments regarding the handbook

are credited.

B. Plaintiff's Affidavit and Exhibits Cannot Overcome the Handbook Disclaimer

Plaintiff's self-serving affidavit also fails to defeat the handbook disclaimer. Plaintiff attempts to present internal financial spreadsheets as some kind of admissions that he was owed severance. See Daszak Affidavit, Exhibit 1, NYSCEF Doc. No. 52. But Plaintiff cites no authority to suggest that a budgeting entry is a contract or entitlement to severance, or that it overrides the handbook's express disclaimer and conditions.

The spreadsheet entries Plaintiff attaches are, at best, internal financial projections concerning potential severance exposure in the event of layoffs. One entry describes "Severance" as "Unlikely, if forced to close, Severance for Remaining Staff." That is an internal contingency projection, not a contractual obligation to pay Plaintiff $368,000 or any other amount as severance. In addition, Plaintiff's Exhibit 1 does not contain the information set forth in the Daszak Affidavit. Compare Daszak Affidavit, p.2 and Exhibit 1, NYSCEF Doc. No. 52.

Accordingly, these spreadsheets cannot, and do not, create an enforceable severance agreement.

POINT II

PLAINTIFF'S CLAIMS OF AGE DISCRIMINATION UNDER THE NYSHRL AND NYCHRL MUST BE DISMISSED

Plaintiff's Opposition attempts to rely on prior conclusory allegations to salvage his age discrimination claims. Plaintiff continues to allege that he was the oldest, most senior, highly compensated, and most qualified employee. However, those allegations do not and cannot plausibly plead that age was a motivating factor in any alleged adverse employment action.

Even with the benefit of Defendants' arguments in support of dismissal, Plaintiff still fails to identify any age-related remark, similarly situated younger executive who was treated

more favorably, a younger replacement President or, in fact, any younger employee who was also the subject of government investigation, suspension, and debarment and who received severance; or any facts at all showing that salary or seniority was used as a proxy for age.

Instead, Plaintiff offers his subjective view that improperly equates age with compensation and tenure. This conclusory allegation is insufficient to plead an age discrimination claim. The simple fact that a senior executive is older or more highly compensated than other employees does not, without more, support a reasonable inference that an adverse employment action occurred because of age. See Lively v. Wafra Inv. Advisory Group, Inc., 211 A.D.3d 432, 433 (1st Dep't Dec. 6, 2022)(granting motion to dismiss plaintiff's NYSHRL and NYCHRL age discrimination claims because plaintiff failed to allege facts that named comparators were terminated under similar circumstances, younger employees were treated more fairly, or that younger employees replaced terminated "older" employes."); see also Mariotti v Alitalia-Linee Aeree Italiane Societa Per Azioni, 2008 N.Y. Misc. LEXIS 9046 at 14-15 (Sup. Ct. N.Y. Cty., July 31, 2008)(dismissing age discrimination claims as conclusory because plaintiff failed to "explain how this discrimination occurred or cite a personal example of age-related discrimination.").

Plaintiff's cited authorities are of no consequence. Ayers v. Bloomberg, L.P., does not set forth any reasoning or rationale behind its decision on the age discrimination claims under review. Ayers v. Bloomberg, L.P., 203 A.D.3d 872, 875 (2nd Dep't. Mar. 16, 2022). However, Ayers affirmed the dismissal of sex discrimination claims under the NYSHRL and NYCHRL. Id. The court affirmed the dismissal of those discrimination claims because, as is the case here, plaintiff failed to plead any facts giving rise to an inference of discrimination. Id. The pleading standards under the NYSHRL and NYCHRL are the same for age and sex discrimination claims,

accordingly, Ayers supports the dismissal of Plaintiff's conclusory age discrimination claims. Ayers at 873-874.

Plaintiff's reliance on Flanagan v. Girl Scouts of Suffolk Cnty., Inc., is similarly flawed. Flanagan, a federal case, vacated the dismissal of plaintiff Grant's NYSHRL race discrimination claims. Flanagan v. Girl Scouts of Suffolk Cnty., Inc., 2025 U.S. App. LEXIS 12747 (2nd Cir. 2025). However, unlike here, plaintiff Grant specifically alleged facts to establish the existence of an inference of discrimination, including statistics demonstrating that all employees of color had their salaries reduced at least 20% and as high as 40% while Caucasian employees received a 10% reduction rate. Here, Plaintiff has provided no allegations, statistics or otherwise, from which to suggest that his termination without severance was even tangentially related to his age.

In addition, Plaintiff has not offered any response or rebuttal to the legitimate contextual facts pleaded in and incorporated into the Complaint – EHA lost federal funding; both Plaintiff and EHA were suspended and debarred due to Plaintiff's conduct as stated in the Department of Health & Human Services' Action Referral Memorandum directed to Daszak, Exhibit C, NYSCEF Doc. No. 47; Plaintiff himself prior to his dismissal and then EHA had no choice but to layoff numerous employees (ultimately all of them); and EHA's alleged movement toward shut down and then dissolution. While Plaintiff now disputes Defendants' characterization of those events, his own pleading contradicts his claims.

POINT III

THE INDIVIDUAL DEFENDANTS ARE IMMUNE FROM LIABILITY

Plaintiff's Opposition also fails to cure the pleading defects as to the Individual Defendants. Plaintiff does not identify any statement, act, vote, communication, instruction, or decision by any specific Board member showing discriminatory animus or aiding-and-abetting

liability. Instead, Plaintiff alleges without basis that the directors "conspired, confederated and agreed" to deprive him of rights, and that they acted "in unison." This fails to plead individual participation required for personal liability under the NYSHRL or NYCHRL.

Plaintiff deliberately misconstrues Defendants' argument instead of remedying his pleading deficiencies. Defendants do not contend that nonprofit directors have a right to discriminate. It is clear in the initial motion that Defendants' argument, supported by New York and Massachusetts laws, is that unpaid directors of a qualifying nonprofit are protected from suit and liability unless Plaintiff pleads facts showing a reasonable probability that their specific conduct was grossly negligent or intended to cause the resulting harm. The Complaint and Opposition fail to set forth any facts required to overcome this statutory protection from suit and liability.

Plaintiff's reliance on N-PCL § 719(f) is misplaced and unwarranted. Defendants' motion relies on N-PCL § 720-a and CPLR 3211(a)(11), which *mandate dismissal* of a complaint where a defendant is immune from liability and the pleading does not identify gross negligence or intentional harm. See Johnson v. Black Equity Alliance, Inc., 26 Misc. 3d 1219(A), 2010 NY Slip Op 50178(U) (N.Y. Sup. Ct. Jan. 21, 2010) (dismissing claims of employment discrimination claims and aiding and abetting discrimination against unpaid directors of a nonprofit under N-PCL § 720-a and CPLR 3211(a)(11) and holding that plaintiff's conclusory allegations did not show a reasonable probability of gross negligence or intent to cause harm).

Here, Plaintiff does not allege particularized facts showing gross negligence or intentional harm by any individual director. Instead, he only offers conclusory statements about

vague, collective action. This is insufficient to overcome the statutory immunity afforded to unpaid nonprofit directors.[1]

POINT IV

THE COURT MAY CONSIDER GOVERNMENT MATERIALS FOR A LIMITED PURPOSE RELATED TO PLAINTIFF'S ALLEGATIONS

Contrary to Plaintiff's attacks in opposition, Defendants' motion does not rely entirely on the government materials annexed to the April 2, 2026 Affirmation of Joseph Anci. Indeed, none of the arguments advanced by Defendants require the Court to accept the Congressional testimony or agency findings as truth of disputed factual assertions.

While Plaintiff may not want the Court to review these materials, the Court may do so for the limited purposes identified in Defendants' motion, namely the existence of the investigation, suspension, and debarment of both Plaintiff and EHA; the fact that Plaintiff specifically referenced those events in the Complaint; and the context in which the Board allegedly acted. The Court is not required to resolve contested factual issues about the underlying government findings on this motion, and Defendants have not asked the Court to do so.

Plaintiff's evidentiary objections are nothing more than a distraction. Even if his arguments are credited, the Complaint should be dismissed for the reasons set forth herein and in Defendants' initial motion.

POINT V

PLAINTIFF'S REQUEST TO AMEND SHOULD BE DENIED

Plaintiff requests leave to replead only in a single sentence at the end of his

[1] Massachusetts law does not change the result. EHA is incorporated in Massachusetts, and Massachusetts law likewise protects uncompensated nonprofit officers, directors, and trustees, subject to exceptions for intentional harm and gross negligence. See Lynch v. Crawford, 483 Mass. 631 (Mass. 2019)(Supreme Judicial Court recognized that charitable-volunteer immunity may apply to statutory employment claims, subject to statutory exceptions). Accordingly, Plaintiff's conclusory pleading is insufficient under New York or Massachusetts law.

opposition. He does not submit a proposed amended complaint, identify new facts, or explain how any amendment would cure the defects.

Leave to amend should not be granted where the proposed amendment would be futile. Here, the defects with the Complaint are not technical errors or omissions, Plaintiff would have to make substantive changes to the factual and legal support for any claims. However, this would be futile as Plaintiff's Opposition and annexed documents make it clear that he did not have an employment contract, was not entitled to severance, has not provided anything other than conclusory statements to support his age discrimination claim; and has not established intent or gross negligence necessary to overcome immunity for unpaid directors.

Accordingly, Plaintiff's request for leave to amend the Complaint should be denied.

CONCLUSION

For the reasons set forth herein and in Defendants' April 2, 2026 motion to dismiss, Defendants respectfully request that this Court issue an order dismissing all claims asserted against Defendants in the Complaint, with prejudice, and with costs, and for such other and further relief as the Court deems just and proper.

Dated: June 26, 2026
New York, New York

Respectfully submitted,

JACKSON LEWIS P.C.

By: */s/ Joseph Anci*
Joseph Anci
Casey Pearlman
Attorneys for Defendants

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DR. PETER DASZAK, PH.D.,

Plaintiff,

-against-

ECOHEALTH ALLIANCE INC., STEVEN SHAPIRO, INDIVIDUALLY AND AS CHAIRMAN OF THE BOARD OF DIRECTORS OF ECOHEALTH ALLIANCE, INC., AND JULIET AGRANOFF, DR. FREDERICK BAUM III, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M. THYE, CARLOTA VOLLHARDT, STEVEN WILS, AND DR. LILIAN WU,

Defendants.

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CERTIFICATE OF WORD COUNT

Pursuant to Section 202.8-b of the Uniform Civil Rules for the Supreme Court and the County Court, I certify that the accompanying *Reply Memorandum of Law in Further Support*, which was prepared using Times New Roman 12-point typeface, contains **2,374 words**, excluding the parts of the document that are exempted (i.e., captions, tables of contents, tables of authorities, and signature block). This certification is made in reliance on the "word count" of the word-processing system (Microsoft Word) used to prepare the document.

Dated: June 26, 2026
New York, New York

Respectfully submitted,

JACKSON LEWIS P.C.

By: */s/ Joseph Anci*
Joseph Anci
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